NATIONAL PRODUCERS GUILD OF UGANDA

PGU CULTURAL USE PROTOCOL | DRAFT v0.9 FOR BOARD ADOPTION

Filming Community Stories, Languages, Sites and Testimonies

Plain-language rules for producers. Communities are rights holders, not resources.

Who it applies to. PGU members, once adopted by the Board, and any producer who wants PGU support, endorsement or a place in a PGU programme. It sits alongside the law. Where the law sets a higher standard, the law applies. PGU does not speak for any community; each community and its custodian speaks for its own heritage.

Rule	What you must do	Minimum evidence on file
1. Consent first	Get free, prior and informed consent from the community and its custodian (cultural institution, clan elders, faith body or site manager) before filming its stories, language, practices, sites or people. Explain the project, where it will be shown and how money is made. Allow time to decide. No pressure, no payment conditional on saying yes.	Signed or recorded consent in the custodian's language; names of who gave it and on whose behalf
2. Attribution	Credit the community and custodian on screen, in the credits and in all metadata, in the words they choose.	Agreed credit wording
3. Benefit sharing	Agree before filming what the community receives: a location or participation fee, a share of licence income for heritage-led works, copies, training or other benefit. Put it in writing.	Benefit agreement
4. Community review	Show the relevant cut to the custodian before release. Correct factual and cultural errors. Editorial control stays with the producer unless agreed otherwise. Remove material the custodian identifies as restricted.	Review date and notes
5. Credit and rights	Sign releases with every performer and contributor. Respect performers' rights (Beijing Treaty, in force for Uganda since 28 April 2022). For anyone under 18: guardian consent, a chaperone and child safeguarding.	Releases; guardian consents
6. Archive deposit	Deposit a copy of heritage footage with the agreed archive and give the community an access copy. Keep raw footage of cultural practice; do not discard it.	Deposit receipt; access copy delivered
7. Restricted material	Do not film sacred, secret or ritual material, shrines, regalia or rites involving children without explicit approval from the custodian. A refusal is final. Do not describe restricted content in publicity.	Custodian approval or record of refusal
8. Testimony	For survivors, refugees, victims or witnesses: ethics review, informed consent, the right to withdraw, no identification without consent, secure storage and lawful processing under the Data Protection and Privacy Act 2019.	Ethics approval; consent forms; data plan

Before you film: checklist

- Identify the custodian. If there is no recognised cultural institution, go through elders and the local government; do not assume no one speaks for the heritage.
- Check the permit authority: UWA for protected areas; Department of Museums and Monuments for gazetted sites; the cultural institution for royal tombs and its sites; KCCA or the local government for public space; the religious body for places of worship.
- Budget for fees, translation, community review and deposit. They are production costs, not favours.
- Agree how the community will see the finished work.

Who should adopt it

Body	Action	Authority
PGU Board	Adopt as a member code; require it for PGU-supported projects and programmes	Board resolution (AGM if made a membership condition)

Body	Action	Authority
MGLSD (Culture) with cultural institutions	Adopt as a joint code for screen use of heritage; consider regulations for associated intangible heritage	Ministerial; Museums and Monuments Act 2023 s.7
UCC, UTB, MTWA, UWA, Fund manager	Make compliance a condition of festival entry, location access, incentives and Fund awards	Agency and ministerial

Basis: UNESCO 2003 Convention practice (free, prior and informed consent; community access, decision 16.COM 7.A.5); Copyright and Neighbouring Rights Act 2006 s.5(1)(j); Museums and Monuments Act 2023 s.10, s.33, s.56; Data Protection and Privacy Act 2019; Beijing Treaty on Audiovisual Performances. PGU is not a law firm; this protocol is not legal advice.